

Davao City Ordinance No. 000060-02

An Ordinance Regulating Cellular and Telecommunication Antenna Towers in Davao City

=== ORDINANCE: Ordinance No. 000060-02 ===

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13th City Council

41st Regular Session

Series of 2002

Republika ng Pilipinas

LUNGSGOD NG DABAW

Tanggapan ng Sangguniang Panlungsod

Present:

Councillor Jimmy G. Dureza, Acting Presiding Officer

Councillor Nilo G. Abellera

Councillor Ma. Belen S. Acosta

Councillor Victorio S. Adincola

Councillor Wilberto E. Al-ag

Councillor Alexis A. Andalan

Councillor Leonard B. Avila, III

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Councillor Salvador V. Cangiles

Councillor Danilo C. Dayanghirang

Councillor April Manan C. Dayap

Councillor Ernesto J. Delacua, Sr.

Councillor Frances Mabel A. Laman

Councillor Peter T. Larrita

Councillor Angela A. Librado

Councillor Liborio V. Lumasin

Councillor Dionisio M. Mariano A. Makipus, Sr.

Councillor Irestita Mata-Mararoton

Councillor Bonifacio E. Militar

Councillor Tomas J. Monteverde, IV

Councillor Beethoven L. Orecillo

Councillor Manuel P. Oquendo-Ortiz

Councillor Susana Isabela C. Reita

Councillor Dioscoro B. Sampaya, Jr.

Councillor Isidro T. Ungab.

On Official Business:

Vice Mayor Luis C. Bongayan - OIC, City Mayor's Office

Ordinance No. 060-02 / Series of 2002

"AN ORDINANCE PROHIBITING THE MANUFACTURE, SALE, DISTRIBUTION, POSSESSION OR USE OF FIRECRACKERS OR PYROTECHNIC DEVICES AND SUCH OTHER SIMILAR DEVICES AND THE EXPLODING OF FIRECRACKERS OR OTHER SIMILAR EXPLOSIVES WITHIN THE TERRITORIAL JURISDICTION OF DAVAO CITY

Be it ordained by the Sangguniang Panlungsod of Davao City in session assembled, that

SECTION 1. PURPOSE OF THIS ORDINANCE - It is the purpose of this Ordinance to prohibit the manufacture, sale, distribution, possession, and use of firecrackers or pyrotechnic devices and such other similar devices and the exploding of firecrackers and other explosives within Davao City in furtherance of public safety, peace, order, and security of the community.

SECTION 2. PROHIBITED ACTS. - (a) It shall be unlawful for any person or business establishment to manufacture, sell or offer for sale, distribute, possess, or use any firecracker or pyrotechnic device or such other similar devices within the territory of Davao City;

(b) It shall, likewise, be unlawful for any person to discharge or explode, or cause to discharge or to explode, any firecracker, or any other explosive or to use any pyrotechnic device or any such similar device, at anytime and anywhere within the territory of Davao City.

SECTION 3. PENALTIES - Violation of any of the provisions of Section 2 of this Ordinance shall be penalized as follows:

- a) For the first offense, a fine of One Thousand Pesos (\$1,000.00) or imprisonment of not more than One (1) month but not less than twenty (20) days, or both fine and imprisonment, at the discretion of the Court;
- b) For the second offense, a fine of Three Thousand Pesos (\$3,000.00) or imprisonment of not more than Three months but not less than One (1) month, or both fine and imprisonment, at the discretion of the Court;
- c) For the third offense, a fine of Five Thousand Pesos (\$5,000.00) or imprisonment of not more than Six (6) months but not less Three (3) months, or both fine and imprisonment, at the discretion of the Court.

If the violation is committed by a business establishment, the President or General Manager or the person, acting in behalf of either the President or General Manager shall be held liable in the case of a corporation or partnership, or the owner or proprietor or the person acting in his behalf shall be held responsible in the case of a single proprietorship.

In addition to the foregoing penalties, the business permit of the business establishment shall be cancelled by the City Mayor upon the commission of the third offense.

SECTION 4. SEPARABILITY CLAUSE - Should any of the provisions of this Ordinance be declared inoperative by the Courts for being inconsistent with the Constitution or the law, the other unaffected provisions of this Ordinance shall remain in full force and effect.

SECTION 5. REPEALING CLAUSE - Any and all ordinances or parts thereof which are inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

SECTION 6: This Ordinance shall take effect after its approval and following its publication in a newspaper of general circulation.

ENACTED, October 15, 2002, by a majority vote of all the Members of the Sangguniang Panlungsod.

CERTIFIED CORRECT:
Lolita J. Garcia

Secretary to the Sangguniang Panlungsod (City Government Department Head II)

ATTESTED:

JIMMY G. DEREZA

City Councilor

Acting Presiding Officer

Attested:

APPROVED:

Rodelio R. Duterte

City Mayor

LEO G. DE LOS SANTOS

City Administrator